

Calendar Line 6

Case Name: Cervantez v. Garden City, Inc.
Case No.: 22CV392905

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on July 31, 2024, at 1:30 p.m. in Department 19. The court now issues its tentative ruling as follows:

I. INTRODUCTION

This is a putative class and representative action brought by plaintiff Joe Cervantez (Plaintiff) alleging various wage and hour violations. The operative First Amended Complaint, filed on June 22, 2022, sets forth the following causes of action: (1) Failure to Pay Minimum Wages; (2) Failure to Pay Overtime Wages; (3) Failure to Provide Meal Periods; (4) Failure to Permit Rest Breaks; (5) Failure to Reimburse Business Expenses; (6) Failure to Provide Accurate Itemized Wage Statements; (7) Failure to Pay All Wages Due Upon Separation of Employment; (8) Violation of Business and Professions Code 17200, et seq.; and (9) Enforcement of Labor Code 2698, et seq. (PAGA .)

On February 10, 2023, the court entered an Order on Defendant’s Motion to Compel Arbitration, Dismiss Class Action, and Stay Proceedings, which sent Plaintiff’s individual claims to arbitration and stayed Plaintiff’s representative claims pending completion of the arbitration.

Now before the court is the motion by Aegis Law Firm, P.C., to be relieved as counsel of record for Plaintiff. The motion is unopposed.

II. LEGAL STANDARD

California Rules of Court, rule 3.1362 sets forth the requirements for a motion to be relieved as counsel. Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (See, Cal. Rules of Ct., rule 3.1362(a) & (b).) Counsel must provide a declaration on Judicial Council Form MC-052 stating “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Ct., rule 3.1362(c).)

The notice of motion and motion, along with the supporting declaration and the proposed order must be served on the client and all parties “by personal service, electronic service, or mail.” (See, Cal. Rules of Ct. rule 3.1362(d).) If the notice is served on the client by mail under Code of Civil Procedure § 1013, it must be accompanied by a declaration stating facts showing that either: (A) The service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved. (Cal. Rules of Ct., rule 3.1362(d).) If the notice is served on the client by electronic service under Code of Civil Procedure § 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client’s current electronic service address. (See, Cal. Rules of Ct., rule 3.1362(d)(2).)

As used in this rule, “current” means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client’s last known address and was not returned, or no electronic delivery message was received is not, by itself, sufficient to demonstrate that the address is current. (See, Cal. Rules of Ct. rule 3.1362(d).)

Furthermore, the proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel-Civil (form MC-053) and must be lodged with the court with the moving papers. (See, Cal. Rules of Ct., rule 3.1362(e).) The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. (Ibid.) The determination of whether to grant a motion to withdraw as counsel lies in the sound discretion of the trial court. (See, *Manfredi & Levine v. Superior Court* (1998) 66 Cal. App. 4th 1128, 1133; see also *People v. Horton* (1995) 11 Cal.4th 1068, 1106.) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (See, Cal. Rules of Ct., rule 3.1362(e).)

III. DISCUSSION

The moving papers comply with all statutory requirements and rules. The motion and the supporting declaration are made on the proper MC-051 and Mc-052 Judicial Council forms. The declaration provides, (a) moving documents were served by mail on the Plaintiff at his last known address, (b) Plaintiff's last known address was confirmed through search of public records on February 27, 2024, (c) the matter is proceeding in arbitration and the arbitrator has agreed to stay the proceedings pending a decision from the court on this motion, (d) there are no upcoming hearing or trial dates, and (e) there has been an irreparable breakdown of the attorney-client relationship. The motion properly includes a proposed order on form MC-053.

The original proof of service was amended on March 13, 2024, to rectify the missing statement about effectuating Plaintiff's service by mail. The amended proof of service, titled "Certificate of Service" demonstrates that Plaintiff was served with the moving papers on March 8, 2024, via mail sent to his last known address at 695 Jackson Street, San Jose, CA 95112

Accordingly, the Court finds there is good cause to relieve counsel from continued representation, and that withdrawal will not cause any reasonably foreseeable prejudice to the rights of the Plaintiffs (See, California Rules of Professional Conduct, Rule 3-700(A)(2).) The motion to be relieved as counsel is **GRANTED**.

- oo0oo -

Calendar Line 7

Case Name:

Case No.:

- oo0oo -

Calendar Line 8

Case Name:

Case No.:

- oo0oo -

Calendar Line 9

Case Name:

Case No.:

- oo0oo -

Calendar Line 10

Case Name:

Case No.:

- oo0oo -

Calendar Line 11

Case Name:

Case No.:

- oo0oo -

Calendar Line 12

Case Name:

Case No.:

- oo0oo -

Calendar Line 13

Case Name:

Case No.:

- oo0oo -